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It's...
**WAGATH
CHRIST**
With Abi Clarke

Defamation Law: part

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An introduction to defamation

- Tort of defamation: designed to protect reputation (not hurt feelings!)
- Lengthy history
- Developed primarily through the common law though some statutory intervention
- Defamation Act 2013

Defamation

- Slander

- The 'spoken word'
- Impermanent/ transitory
- **Special damage** required for a slander to be actionable
- Though some exceptions to requirement for proof of damage
- Used to be more by way of exceptions – see effect of Defamation Act

- Libel

- In the past, could also be a crime
- The 'written word'
- Permanent rather than transitory
- Though some exceptions [eg radio and TV broadcasts are treated as libel]
- Historically: actionable *per se*

Slander:

when is it actionable *per se*?

- Imputation of a criminal offence punishable by imprisonment;
- Imputation of professional unfitness or incompetence*;
- ~~Imputation of unchastity or adultery by a female;~~
- ~~Imputation of a contagious disease (now needs special damage.~~

Long common law history:

- Why was reform needed?

Libel Tourism (whom the court favours)

Chilling Effect

Negative Impact upon freedom of expression

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Costs involve access to justice issues

Defamation Act 2013: some notable interventions

- Clearer guidance with 'serious harm'
- Introduced the 'public interest' defence (s. 4)
- Replaced the 'honest or fair comment' defence with 'honest opinion' (s. 3)
- Further protection for 'distributors,' including websites, alongside court ordered removal (s. 13) of material (various sections)
- Some technical certainty: heard by judges, limit jurisdictional scope.

Elements of a defamation action

(Defamation Act + precedent)

- (1) **defamatory statement**
- (2) statement must be such that it has caused/
is likely to cause **serious harm to reputation**
OR, in the case of a trading for profit, has
caused or likely to cause **serious financial loss**
(see s 1 Defamation Act 2013)
- (3) **reference to that other person**
 - (4) **publication**

‘a threshold requirement of seriousness’

1. The meaning of defamatory

- Various meanings
e.g. “Words that tend to lower [the claimant] in the estimation of right-thinking members of society generally.”
 - *Sim v Stretch*
- But mere bruising of ego not enough.
 - *Insitu Cleaning Co Ltd v Heads*



1. The meaning of defamatory - Standard of Opinion

- Whose opinion counts in considering whether or not a statement is defamatory?
 - “Right thinking” members of society generally - *Tolley v Fry* [1930] 1 KB 467
 - What if it's not clear?
 - Mitting J fell into legal error by relying upon the dictionary definition of the verb ‘to strangle’ as dictating the meaning of Mrs Stocker’s Facebook post, rather than as (as Sharp LJ [in the Court of Appeal] suggested) a check. In consequence, he failed to conduct a realistic exploration of how the ordinary reader of the post would have understood it.’ – Lord Kerr
 - *Stocker v Stocker* [2019] UKSC 17 (SC)

2. Requirement of serious harm

Section 1, Defamation Act 2013

1. A statement is not defamatory unless its publication has caused or is likely to cause serious harm to the reputation of the claimant.
2. For the purposes of this section, harm to the reputation of a body that trades for profit is not “serious harm” unless it has caused or is likely to cause the body serious financial loss.

Designed to prevent frivolous actions

Clarity on 'Serious Harm' s.1(1)

Lachaux v Independent Print Ltd [2019] UKSC 27 (SC)

- i) the scale of the publications;
- (ii) the fact that the statements complained of had come to the attention of at least one identifiable person in the United Kingdom who knew Mr Lachaux;
- (iii) that they were likely to have come to the attention of others who either knew him or would come to know him in future; and
- (iv) the gravity of the statements themselves, according to the meaning attributed to them...
- - Per Warby J

3. Reference to the claimant

- 'Innuendo' can suffice if proved;
 - At times, reference by implication sufficient:
 - *Newstead v London Express Newspaper Ltd* [1940]
 - 'Harold Newstead, a thirty year old Camberwell man,' related to a bigamy trial
 - *But see... O'Shea v MGN Ltd* [2001]
- No liability for 'look a like' internet

3. Reference to the Claimant

- Group defamation
 - *Knupffer v London Express Newspaper Ltd* [1944]
 - Referring a group as Nazi sympathisers; 24 UK members, but topic on US/France chapters of thousands.
- If a class of persons is defamed, individual belonging to that class will only be able to succeed in defamation proceedings if;
 - They can prove that it was capable of referring to them personally
 - AND, that the statement was actually understood by people to¹³ refer to him or her.

4. Publication of the statement

- Statement considered as published if made available to at least one person **other than** the claimant
 - Where the claimant has NOT made the statement available to a third party, will not be considered as 'published'; *Hinderer v Cole* [1977]
 - Letter addressed to the claimant and opened by an unauthorised third party not published; *Huth v Huth* [1915]
 - 'Serious harm' requirement outlined in s. 1 Defamation Act 2013 tends to weigh against, though does not in itself prevent, an action going forward where it is based upon publication to just one other person.

Subsequent Publications

- REPUBLICATION and 'single publication rule' (s. 8): Defamation Act 2013 -unless the republication is "materially different" from the first publication
- REPETITION of a defamatory statement = new publication = a new cause of action
 - An action can be taken against anyone who has repeated the allegation as well as the party which issued the original defamatory statement

Defamation?

- Defamation?
 - Defamatory **statement**, meeting the threshold requirement of **seriousness**
 - **serious harm to reputation** OR, in the case of a trading for profit, has caused or likely to cause **serious financial loss**
 - **reference to that other person**
 - **publication**

For Friday:

- Be sure to read your textbook chapter on Defamation – in particular, the annotated Defamation Act
- Lecture 13B: Defamation cont'd
 - Defences, human rights, and celebrity news examples